

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING SECTION 12.04.010, OBSTRUCTIONS ON STREETS, AND SECTION 12.04.080, CONSTRUCTION AND REPAIR—PERMITS REQUIRED—FEES—EXCEPTION, OF CHAPTER 12.04, STREETS, SIDEWALKS AND DRIVEWAYS GENERALLY, OF TITLE 12, STREETS, SIDEWALKS AND PUBLIC PLACES, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 12.04.010, Obstructions on streets, of Chapter 12.04, Streets, Sidewalks and Driveways Generally, of Title 12, Streets, Sidewalks and Public Places, of the Code of the City of Cheyenne, Wyoming, is amended as follows:

12.04.010 Obstructions on streets, ALLEYS, SIDEWALKS, OR DRIVEWAYS WITHIN THE PUBLIC RIGHT-OF-WAY DESIGNATION OF NUISANCE—PROSECUTION AS A MISDEMEANOR.

A. Except as otherwise provided by this ~~code~~ SECTION or other ~~city ordinance~~ PROVISION OF THIS CODE, no person shall erect, maintain or in any way cause an obstruction of any character in or upon any street, alley, or sidewalk within ANY PUBLIC RIGHT-OF-WAY of the city.

B. A PERSON MAY OBSTRUCT A STREET, ALLEY, OR DRIVEWAY WITHIN A PUBLIC RIGHT-OF-WAY TO THE EXTENT PERMITTED BY A RIGHT-OF-WAY ENCROACHMENT PERMIT ISSUED BY THE CITY ENGINEER PURSUANT TO SECTION 12.04.080, SECTION 12.04.150, SECTION 12.04.230, OR SECTION 12.12.010 OF THIS CODE.

C. A PERSON MAY, ~~WITHOUT HAVING TO SECURE A RIGHT-OF-WAY STORAGE PERMIT,~~ **FOLLOWING THE ATTAINMENT OF A RIGHT-OF-WAY STORAGE PERMIT**, OBSTRUCT A STREET, ALLEY, OR DRIVEWAY WITHIN A PUBLIC RIGHT-OF-WAY FOR THE STORAGE OR PLACEMENT OF LANDSCAPING MATERIALS, SUCH AS GRAVEL, ROCKS, DIRT, SOD, MULCH, BRICK PAVERS, WEED BARRIER FABRICS, IRRIGATION SYSTEM COMPONENTS, LANDSCAPE LIGHTING COMPONENTS, AND LUMBER, SUBJECT TO THE FOLLOWING TERMS AND CONDITIONS:

1. THE PERIOD OF OBSTRUCTION SHALL NOT EXCEED ~~SEVENTY-TWO (72) HOURS—~~ **SEVEN (7) CONSECUTIVE DAYS;**
2. THE AREA OF OBSTRUCTION SHALL NOT EXCEED TWENTY-FIVE (25) SQUARE FEET;
3. THE OBSTRUCTION SHALL NOT UNDULY RESTRICT PEDESTRIAN, VEHICULAR OR OTHER PUBLIC USE OF THE RIGHT-OF-WAY; AND
4. EROSION CONTROL BEST MANAGEMENT PRACTICES (BMPs) SHALL BE USED TO REDUCE POLLUTANTS WHICH MAY BE DISCHARGED FROM LANDSCAPING MATERIALS AS A RESULT OF STORM EVENTS, SNOW MELT, OR ANY OTHER APPLICATION OF WATER.

D. A PERSON MAY OBSTRUCT A STREET, ALLEY, OR DRIVEWAY WITHIN A PUBLIC RIGHT-OF-WAY FOR THE STORAGE OR PLACEMENT OF MATERIALS, EQUIPMENT, OR OTHER TANGIBLE PERSONAL PROPERTY THEREIN (OTHER THAN LANDSCAPING MATERIALS) TO THE EXTENT PERMITTED BY A RIGHT-OF-WAY STORAGE PERMIT ISSUED BY THE CITY ENGINEER. FOR THE PURPOSES OF THIS CHAPTER, THE TERMS “PERSONAL PROPERTY” AND “EQUIPMENT” SHALL INCLUDE

STORAGE CONTAINERS AND ROLL-OFFS.

E. THE OBSTRUCTION OF ANY STREET, ALLEY, OR DRIVEWAY WITHIN A PUBLIC RIGHT-OF-WAY BY THE STORAGE OR PLACEMENT OF MATERIALS, EQUIPMENT, OR OTHER TANGIBLE PERSONAL PROPERTY THEREIN WITHOUT HAVING OBTAINED, WHEN REQUIRED, A RIGHT-OF-WAY STORAGE PERMIT, OR FOLLOWING THE EXPIRATION OF SUCH A PERMIT, SHALL CONSTITUTE A NUISANCE AND A MISDEMEANOR PUNISHABLE IN ACCORDANCE WITH THE PENALTY PROVISIONS OF SECTION 1.24.010 OF THIS CODE.

F. THE OBSTRUCTION OF ANY STREET, ALLEY, OR DRIVEWAY WITHIN A PUBLIC RIGHT-OF-WAY BY THE STORAGE OR PLACEMENT OF MATERIALS, EQUIPMENT OR OTHER TANGIBLE PERSONAL PROPERTY THEREIN IN ANY MANNER WHICH VIOLATES THE TERMS AND CONDITIONS OF A RIGHT-OF-WAY STORAGE PERMIT ISSUED BY THE CITY ENGINEER IN ACCORDANCE WITH CHAPTER 12.04 OF THIS CODE SHALL CONSTITUTE A NUISANCE AND A MISDEMEANOR PUNISHABLE IN ACCORDANCE WITH THE PENALTY PROVISIONS OF SECTION 1.24.010 OF THIS CODE.

G. THE PERFORMANCE OF ANY CONSTRUCTION, EXCAVATION, OR OTHER WORK WITHIN OR UPON ANY SIDEWALK, CURB AND GUTTER, DRIVEWAY, ROADWAY OR STREET WITHOUT HAVING OBTAINED A RIGHT-OF-WAY ENCROACHMENT PERMIT FROM THE CITY ENGINEER, OR FOLLOWING THE EXPIRATION OF A SUCH A PERMIT, SHALL CONSTITUTE A NUISANCE AND A MISDEMEANOR PUNISHABLE IN ACCORDANCE WITH THE PENALTY PROVISIONS OF SECTION 1.24.010 OF THIS CODE.

H. THE PERFORMANCE OF ANY CONSTRUCTION, EXCAVATION, OR OTHER WORK WITHIN OR UPON ANY SIDEWALK, CURB AND GUTTER, DRIVEWAY, ROADWAY OR STREET IN ANY MANNER WHICH VIOLATES THE TERMS AND CONDITIONS OF A RIGHT-OF-WAY ENCROACHMENT PERMIT ISSUED BY THE CITY ENGINEER IN ACCORDANCE WITH CHAPTER 12.04 OF THIS CODE SHALL CONSTITUTE A NUISANCE AND A MISDEMEANOR PUNISHABLE IN ACCORDANCE WITH THE PENALTY PROVISIONS OF SECTION 1.24.010 OF THIS CODE.

I. FOR THE PURPOSES OF THIS CHAPTER, THE PHRASE “MATERIALS, EQUIPMENT OR OTHER TANGIBLE PERSONAL PROPERTY” SHALL NOT INCLUDE ANY “MOTOR VEHICLE” OR “VEHICLE” AS DEFINED IN WYO. STAT. SECTION 31-1-101(A); NOR SHALL THE PHRASE INCLUDE REFUSE CONTAINERS SMALLER THAN TWO (2) CUBIC YARDS IN SIZE PLACED IN ACCORDANCE WITH CHAPTER 8.44 OF THIS CODE.

Section 2. That Section 12.04.080, Construction and repair–Permits required–Fees–Exception, of Chapter 12.04, Streets, Sidewalks and Driveways Generally, of Title 12, Streets, Sidewalks and Public Places, of the Code of the City of Cheyenne, Wyoming, is amended as follows:

12.04.080 Construction, and repair, AND STORAGE IN RIGHT-OF-WAY–Permits required– Fees–Exception.

A. RIGHT-OF-WAY ENCROACHMENT PERMIT. No person may construct, remove or repair any sidewalk, curb and gutter, driveway, roadway or street, or perform any EXCAVATION OR other work within the public right-of-way without first obtaining a right-of-way encroachment permit. Right-of-way encroachment permit and plan review fees for work in the public right-of-way shall be based on the valuation of the work and paid in accordance with the schedule of permit fees contained in Section 15.08.030. If the work to be done in the right-of-way is in conjunction with a building permit, a separate right-of-way encroachment permit is required.

~~B. Exception. None, unless waived specifically by the city engineer.~~

B. RIGHT-OF-WAY STORAGE PERMIT. SUBJECT TO THE TERMS AND CONDITIONS THIS SECTION, THE CITY ENGINEER MAY ISSUE A RIGHT-OF-WAY STORAGE PERMIT FOR THE STORAGE OR PLACEMENT OF MATERIALS, EQUIPMENT OR OTHER TANGIBLE PERSONAL PROPERTY IN THE RIGHT-OF-WAY SUBJECT TO SUCH TERMS AND CONDITIONS AS THE CITY ENGINEER MAY DETERMINE TO BE NECESSARY FOR THE PROTECTION OF THE PUBLIC HEALTH AND SAFETY. AN APPLICANT FOR A RIGHT-OF-WAY STORAGE PERMIT SHALL COMPLETE AN APPLICATION FORM PRESCRIBED BY THE CITY ENGINEER.

C. FOR RIGHT-OF-WAY STORAGE IN COMMERCIAL, MIXED USE, AND INDUSTRIAL DISTRICTS, AS DEFINED IN ARTICLE 5 OF THE UNIFIED DEVELOPMENT CODE (“UDC”), THE CITY ENGINEER SHALL ~~CHARGE A FEE FOR THE ISSUANCE OF A RIGHT-OF-WAY STORAGE PERMIT IN THE AMOUNT OF FIVE DOLLARS (\$5.00) PER DAY, OR PART OF A DAY,~~ **ISSUE A RIGHT-OF-WAY STORAGE PERMIT AT NO COST TO THE APPLICANT**, THAT THE PERMIT WILL BE IN EFFECT, BEGINNING WITH THE DATE OF ISSUANCE AND CONTINUING THROUGH THE DATE OF TERMINATION STATED IN THE PERMIT.

D. FOR RIGHT-OF-WAY STORAGE IN RURAL, AGRICULTURAL, RESIDENTIAL NEIGHBORHOOD, SPECIAL PURPOSE AND OVERLAY DISTRICTS, AS DEFINED IN ARTICLE 5 OF THE UNIFIED DEVELOPMENT CODE (“UDC”), THE CITY ENGINEER SHALL ~~CHARGE A FEE FOR THE ISSUANCE OF A RIGHT-OF-WAY STORAGE PERMIT IN THE AMOUNT OF FIVE DOLLARS (\$5.00) PER DAY, OR PART OF A DAY, THAT THE PERMIT WILL BE IN EFFECT UP TO A MAXIMUM OF FIFTEEN (15) DAYS. IF THE APPLICANT DESIRES THAT THE PERMIT REMAIN IN EFFECT FOR MORE THAN FIFTEEN (15) DAYS, THE CITY ENGINEER SHALL CHARGE A PERMIT FEE OF TEN DOLLARS (\$10.00) PER DAY, OR PART OF A DAY, UP TO A MAXIMUM OF FIFTEEN (15) ADDITIONAL DAYS.~~ **ISSUE A RIGHT-OF-WAY STORAGE PERMIT AT NO CHARGE TO THE APPLICANT. THE PERMIT WILL BE IN EFFECT UP TO A MAXIMUM OF SEVEN (7) DAYS.**

~~E. THE CITY ENGINEER SHALL NOT ISSUE A RIGHT-OF-WAY STORAGE PERMIT FOR STORAGE IN RURAL, AGRICULTURAL, RESIDENTIAL NEIGHBORHOOD, SPECIAL PURPOSE OR OVERLAY DISTRICTS, FOR A PERIOD OF TIME LONGER THAN THIRTY (30) CONSECUTIVE DAYS.~~

~~F.~~ **E.** EACH PERMIT ISSUED PURSUANT TO THIS SECTION SHALL BE CONSPICUOUSLY POSTED AT THE SITE DESIGNATED IN THE PERMIT DURING THE ENTIRE PERIOD THAT SAID PERMIT IS EFFECTIVE.

~~G.~~ **F.** PERSONS ENGAGED IN THE BUSINESS OF RENTING STORAGE CONTAINERS OR REFUSE CONTAINERS (“ROLL-OFF CONTAINERS”) WITH CAPACITIES OF TWO (2) CUBIC YARDS OR GREATER SHALL ADD REFLECTIVE TAPE, AND SUCH OTHER WARNING OR TRAFFIC CONTROL MEASURES AS MAY BE REQUIRED BY THE CITY ENGINEER, TO EACH SUCH CONTAINER AND SHALL ALSO NOTIFY THEIR CUSTOMERS OF THE REQUIREMENTS OF THIS CHAPTER.

Section 3. This ordinance shall be in full force and effect upon its passage and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

(SEAL)

Richard L. Kaysen, Mayor

Attest:

Carol Intlekofer, City Clerk

Publish: Wyoming Tribune Eagle